
2:00 PM **LINE 8**

25-CIV-05177

JEANNETTE LONG VS. ARTICHOKE JOE'S CASINO INC.

JEANNETTE LONG
ARTICHOKE JOE'S CASINO INC.

PRO/PER
MELISSA A. HOFFMAN

MOTION FOR RECONSIDERATION (CCP 1008) AND MOTION TO SET ASIDE CCP 473(b)

TENTATIVE RULING:

Plaintiff Jeanette Long's Motion for Reconsideration and Motion to Set Aside [the Court's April 29, 2026 Order Denying Terminating Sanctions], filed on May 1, 2026, is **DENIED**.

Defendant Artichoke Joe's request for attorney's fees is **DENIED**.

Plaintiff is reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A motion for reconsideration must be "based upon new or different facts, circumstances, or law." (Code Civ. Proc., § 1008, subd. (a).) Plaintiff has not presented new facts or legal authority. The purportedly "new fact" – an email to Ms. Long dated April 16, 2025 (Long Decl., exh. L) is not a new fact. That Ms. Long lost unidentified hard copy legal files on or about December 20, 2025 does not excuse her failure to present the email in the initial motion. Plaintiff further has not explained what documents were allegedly stolen, how that affected her prior motion, and why, given that the email continued to exist in an electronic form after the hard copy documents were purportedly taken, she did not include the email in the initial filing. "A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) Ms. Long has not done so. Accordingly, she has neither satisfied Section 1008, nor has she demonstrated "mistake, inadvertence, surprise, or excusable neglect" warranting relief. (Code Civ. Proc., § 473, subd. (b).)

Substantively, even if plaintiff had submitted the email attached as exhibit L, it would not have changed the outcome. Contrary to plaintiff, exhibit L does not "[a]dmit[] to a criminal invasion of privacy." (Mot., at p. 2.) Rather, it refers to the settlement agreement and release of all claims between the parties, signed on April 1, 2025, relating to an alleged incident involving a photograph taken by an Artichoke Joe's employee in the women's bathroom, on or about March 17, 2025. (Long Decl., exh. M.) Even if that email had indicated some form of discovery abuse, the court would still have denied the request for terminating sanctions, which is a severe remedy, only taken after other lesser remedies have proved insufficient. (*Dept. of Forestry and Fire*

Protection v. Howell (2017) 18 Cal.App.5th 154, 191 [terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280 [terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses].)

The court **DENIES** defendant's request for fees. "A California court may impose attorney fees as a sanction only when authorized by statute to do so." (*Moofly Productions, LLC v. Favila* (2018) 24 Cal.App.5th 993, 997.) "A court may impose sanctions under section 1008, subdivision (d), 'as allowed by [s]ection 128.7.' Sanctions are not 'allowed by [s]ection 128.7' (§ 1008, subd. (d)), unless all the requirements of section 128.7, including safe harbor, are followed." (*Ibid.*) Defendant did not invoke Section 128.7 in its opposition (termed an "objection") to plaintiff's motion for reconsideration, including the safe harbor of subdivision (c). Accordingly, there is no basis on which the court can award attorney's fees.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 9**

26-UDL-00421

CHIU PROPERTIES, LLC VS. EDDY ADEMAR AREVALO, ET AL

CHIU PROPERTIES, LLC
EDDY ADEMAR AREVALO

STEVEN T. NAUMCHIK
PRO PER

DEFENDANT EDDY ADEMAR AREVALO'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

Defendant Eddy Ademar Arevalo's demurrer to the complaint filed by plaintiff Chiu Properties, LLC is **OVERRULED**.

A. Defendant's Proof of Service is Defective

As an initial matter, the proof of service fails to establish proper service on plaintiff. The proof of service includes only a box to check for service by mail, but the box is unchecked. (Proof of Service filed July 21, 2026.)

The proof of service is once again addressed to "Rothbard Law Group LLO" instead of Rothbard Law Group LLP despite the court previously pointing out this same defect with defendant's prior proof of service. (See May 20, 2026 Order.) As the court previously stated, "[w]hile the latter is presumably a mere typographical error, "[s]ervice by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a. (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting a law firm's name from an address render service by mail ineffective. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364 [service ineffective where mail was addressed to specific named attorney but firm's name omitted].)" (*Ibid.*)

However, because plaintiff has filed an opposition to the demurrer, the court rules on the merits.

B. Legal Standards

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

A special demurrer for uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f) is disfavored and are strictly construed, because discovery can be used for clarification. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

C. The Demurrer is Overruled

1. The Complaint is Not Uncertain as to Paragraphs V and VIII

A demurrer for uncertainty will be sustained where the complaint is so uncertain that the defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.)

Defendant claims that the Complaint is uncertain as to paragraph V because it alleges that defendants materially violated and failed to perform the conditions and covenants of the lease agreement, but it does not identify the specific lease covenant, provision or term violated or the individual defendant separately.

However, defendant acknowledges that paragraph VIII alleges that defendant continued to violate and perform the covenants and conditions of the lease agreement: unauthorized occupants. (Complaint, ¶ VIII.) Moreover, the 3-day notice specifically identifies the breach based on paragraphs 10, 11 and 12 of the lease agreement. (Complaint, exh. B.) This includes that guests may not stay more than 14 consecutive days or a total of 28 days in a 12-month period. (*Ibid.*) The Complaint states that the rental unit shall not be sublet or assigned and that management discovered an unauthorized resident, Sarah Gatliff, who has resided in the unit past the permitted time for guests. (*Ibid.*) Defendant claimed to be in the process of attempting to evict the unauthorized resident. (*Ibid.*) Thus, defendant's uncertainty argument is without merit.

Defendant also contends that paragraph VIII is ambiguous as to whether it purports to state a separate, individual direct cause of action against defendant, as distinct from a continuation of the general allegations set forth in the preceding paragraphs. Defendant appears to be confused as the Complaint alleges only a single cause of action for unlawful detainer, and therefore the paragraphs must be construed together. In any event, the Complaint is not ambiguous as to paragraph VIII.

2. The Demurrer for Failure to State Facts Sufficient to Constitute a Cause of Action is Overruled

a. The 3-Day Notice and the Lease Agreement Do Not Directly Conflict

Defendant argues the Complaint fails to state facts sufficient to constitute a cause of action because the 3-day notice demands that he cure the alleged unauthorized-occupancy breach, yet

the lease agreement expressly designates unauthorized occupancy as an irremediable breach for which Landlord may elect immediate termination. (Complaint, ¶¶ IV, VI, and Exh. A.) Defendant asserts that the lease agreement and 3-day notice are in direct conflict because plaintiff served a 3-day notice to perform covenant or quit rather than simply demanding possession within 3 days. (See *Horton-Howard v. Payton* (1919) 44 Cal.App. 108, 111-113.) Defendant further contends that the 3-day notice improperly demands cure of a breach that the lease designates as irremediable.

Defendant misreads the lease agreement. Paragraph 12 is titled “Subletting and Assignment.” (Complaint, exh. A.) It states in part:

... Any person who is not named as an Occupant in this Agreement or Resident who signed this Agreement, who occupies any portion of the rental unit, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is not a Guest. This constitutes attempted subletting or assignment under this Agreement, and is, ***at the election of Landlord***, irremediable breach of this Agreement and cause for immediate termination.

(*Ibid.*, emphasis added.)

Thus, the agreement provides that plaintiff may elect to treat subletting or assignment as an irremediable breach. It does not require plaintiff to do so, as defendant seems to be arguing. Therefore, plaintiff’s 3-day notice giving defendant an opportunity to comply with the agreement or quit is not in direct conflict with the lease or improper.

b. The 3-Day Notice Does Not Require the Information Claimed by Defendant

Defendant further asserts that the 3-day notice does not afford a meaningful opportunity to cure because it names no occupant or date. Defendant’s argument is wholly without merit as the 3-day notice identifies defendant Sarah Gatliss as the unauthorized resident. (Complaint, exh. B.) The 3-day notice also states that within three days, excluding weekends and judicial holidays, after the date of service upon defendant of the notice, defendant is required to perform or otherwise comply or quit and deliver possession of the property. (*Ibid.*)

c. The Just Cause Allegations are Not Insufficient

Defendant asserts that the lease agreement establishes that the tenancy is subject to the Tenant Protection Act’s just cause, but the 3-day notice does not state statutory just cause. Defendant claims that Civil Code, section 1946.2, subdivision (a) requires that just cause be stated in the written notice to terminate a tenancy and a notice omitting just cause defeats the unlawful detainer. In support, defendant cites “*Borden v. Stiles* (Cal. Ct. App. 2023)” without providing the full citation. (Defendant’s Memo., at p. 12:14 [the correct citation is *Borden v. Stiles* (2023) 92 Cal.App.5th 337].) Defendant contends the notice states only unauthorized

occupants and does not identify the applicable subdivision of 1946.2. Further, the Complaint alleges only that it complied with just cause for eviction laws and the Tenant Protection Act. Defendant claims that a termination notice failing to comply with statutorily required content is defective, and a demurrer may be sustained for this reason. (See *2710 Sutter Ventures, LLC v. Millis* (2022) 82 Cal.App.5th 842.)

Once again, defendant's argument appears without merit. Civil Code, section 1946.2, subdivision (a) provides that "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civil Code, § 1946.2, subd. (a).) Plaintiff served a 3-day notice identifying that defendant had an unauthorized occupant in breach of the lease agreement. "At-fault just cause" includes a "breach of a material term of the lease, as described in paragraph (3) of Section 1161 of the Code of Civil Procedure, including, but not limited to, violation of a provision of the lease after being issued a written notice to correct the violation." (*Id.*, subd. (b)(1)(B).) The 3-day notice states that on March 6, 2026, management served a 3-day notice to perform or quit by removing the unauthorized occupants from the property. Thereafter, defendant failed to do so. (Complaint, exh. B.) Plaintiff then served the 3-day notice upon which this action is based. Therefore, the notice states just cause for eviction.

For the foregoing reasons, defendant Eddy Ademar Arevalo's demurrer is **OVERRULED**. Defendant Arevalo must file an answer to the Complaint within five (5) days of notice of entry of the formal order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM